

The Cochin Harbour Craft Rules, 1947

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The Cochin Harbour Craft Rules, 1947

UNION OF INDIA

India

The Cochin Harbour Craft Rules, 1947

Rule THE-COCHIN-HARBOUR-CRAFT-RULES-1947 of 1947

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The Cochin Harbour Craft Rules, 1947

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2028.

No. 11-P (63)/41, dated 11th August, 1947. - In exercise of the powers conferred by Cl. (k) of sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908), and in supersession of all previous rules on the subject, the Central Government is pleased to direct that the following rules shall be made for the licensing and regulation of Harbour Craft and Crews thereof in the Port of Cochin, the same having been previously published as required by sub-section (2) of the said section, namely,

Rules

1.

Short title and application.

(1)

These rules may be called the Cochin Harbour Craft Rules, 1947.

(2)

They shall apply to the Port of Cochin.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context

(a)

"harbour craft" means any catamaran plying for hire, or any flat or cargo, passenger or other boat plying whether for hire or not, and whether regularly or only occasionally in, or partly within and partly without, the Port;

(b)

"inner harbour" means that part of Port which lies landward of the Port Jetty near the Harbour Master's office in Fort Cochin;

(c)

"licensed harbour craft" means any harbour craft licensed under these Rules;

(d)

"motor boat" means any harbour craft propelled wholly or in part by any form of electrical or mechanical power other than steam;

(e)

"Outer-roads" means that part of the Port which lies seaward of the Port Jetty near the Harbour Master's office in Fort Cochin;

(f)

"Owner" used in relation to harbour craft includes any part owner, agent for mortgagee in possession thereof;

(g)

"Port" means the Port of Cochin comprised within the territories of the State of Travancore-Cochin and Madras the limits of which have been specified in the notification of the Government of India in the Ministry of Transport No. 11-P(107)/49, dated the 8th January, 1952;

(h)

"Deputy Conservator of the Port" means the Deputy Conservator of the Port, Cochin;

(i)

"Servant" used in relation to owner includes the tindal or any boatman;

(j)

"Steam-boat" means any harbour craft propelled wholly or in part by steam power;

(k)

"tindal" includes any person in charge of a harbour craft.

3.

Harbour Craft to be licensed.

- No person shall use, as owner, tindal or servants, or ply for hire, any harbour craft, whether regularly or occasionally, for carrying goods or passengers to or from any vessel at the Port or for regularly plying from place to place within port limits or partly within and partly without such limits, unless the harbour craft has been duly licensed under these rules :

Provided that nothing in this rule shall apply to

(a)

any boat forming part of the equipment of a ship or steamer; or

(b)

any harbour craft maintained solely for purposes of pleasure; or

(c)

any mechanised fishing vessel which exceeds fifteen tons net and which is registered under the Merchant Shipping Act, 1958:

Provided further that the Deputy Conservator may, if he thinks fit, withdraw exemption in respect of any such boat or harbour craft as is mentioned in clause (a) or clause (b) of the preceding proviso.

4.

Licensing of harbour craft.

(1)

Every application for the licensing of a harbour craft under rule 3 shall be made to the Deputy Conservator of the Port in writing and shall contain the following particulars

(a)

the owner's name and address in full and if the owner is a minor the name and address of his guardian also;

(b)

the name and address of the agent, if any, duly authorised by the owner to act on his behalf;

(c)

the name of the tindal whom the owner proposes to place in charge of the harbour craft; and

(d)

the nature of the licence required, i.e., whether it is required for a passenger boat, or for a cargo boat, or for a passenger and cargo boat.

(2)

On receiving an application for licence under sub-rule (1), the Deputy Conservator of the Port shall survey and measure the harbour craft, or cause it to be surveyed and measured in the presence of the owner or of any person duly appointed for the purpose by such owner, and grant a licence in Form A, on being satisfied that the craft is seaworthy and fit for service at the Port, or upon the production of a certificate in writing from the officer who surveyed the craft certifying

(a)

that such craft is seaworthy, properly equipped and suited for the purpose for which the licence is required;

(b)

the number of passengers that such craft is capable of carrying under all conditions;

(c)

the number of crew required for the safe navigation of such craft;

(d)

that the equipment of such craft is in good order and condition.

(3)

For purposes of the survey and measurement prescribed in sub-rule (2) the owner shall cause the harbour craft to be brought to such place as the Deputy Conservator of the Port may appoint.

(4)

Subject to the provisions of these Rules, every licence in Form A shall be valid up to and inclusive of the 31st December of the year in which the licence is issued.

5.

Minor or female owners.

- If the owner of harbour craft is a minor, the licence may be obtained by the guardian of the minor. If the owner is a woman, who, according to the custom of the country, does not appear in public, the licence may be obtained on her behalf by her duly authorised agent. In such cases the guardian or the agent shall be deemed to be the owner for the purposes of these rules.

6.

Licence, rules, etc. to be produced when demanded.

(1)

The licence of every harbour craft shall be kept in the possession of the tindal, who shall produce the licence whenever called upon to do so by the Deputy Conservator of the Port or by any person duly authorised by the Deputy Conservator of the Port in that behalf.

(2)

A copy of these rules and of any written directions issued by the Deputy Conservator of the Port for carrying the same into effect shall also be furnished by the owner to the tindal who shall, on demand, show them to any consignor or passenger by such harbour craft. The owner shall be responsible for securing that the tindal understands the said rules and directions, for obtaining a declaration from him to that effect and for producing such declaration whenever required by the Deputy Conservator of the Port.

7.

Distinctive numbering of licensed harbour craft.

(1)

The owner of a licensed harbour craft shall paint or cause to be painted upon a black ground in white English figures, not less than six inches in length, on a conspicuous part of the bow of such harbour craft on one side, and of the quarter on the other, the number of the harbour craft as mentioned in the licence.

(2)

No person shall paint or cause to be painted or counterfeited upon any harbour craft not duly licensed under rule 4, any such number as aforesaid or any other mark likely to induce the belief that such harbour craft has been so licensed.

8.

Change of ownership or control of licensed harbour craft.

- Where the holder of a licence in Form A transfers the ownership of the harbour craft to another person, the licence shall cease to be valid on the expiry of six days from the date of such transfer, and where such holder mortgages the harbour craft to or places it under the control of; another person the licence shall cease to be valid on the expiry of six days from the date of such transfer unless an endorsement on the licence is made by the Deputy Conservator of the Port that notwithstanding the transfer, the licence shall continue to be valid.

9.

Changes in crew or carrying capacity of licensed harbour craft to be reported.

- Whenever the tindal of any licensed harbour craft is changed, or any alteration in such craft is made so as to affect any of the particulars contained in the licence granted for it, such change or alteration shall be forthwith reported by its owner to the Deputy Conservator of the Port :

Provided that, if such change or alteration takes place at a time when the harbour craft is away from the Port, it may be reported immediately on the return of the harbour craft to the Port. In case of change of tindal or of any alteration in the harbour craft not affecting its carrying capacity the harbour craft shall not ply until such report is made, and in case of change of tindal until the tindal has also been produced before the Deputy Conservator of the Port. On such report or on such report and production, as the case may be, the Deputy Conservator of the Port shall amend the original licence held by the owner and in case of change of tindal, the register kept under rule 10.

In case of any alteration in the harbour craft affecting its carrying capacity the original licence held by the owner shall be cancelled and a fresh licence issued by the Deputy Conservator of the Port after craft has been remeasured, and the harbour craft shall not ply until such fresh licence has been issued.

10.

Registration of tindals.

(1)

At the time of licensing of any harbour craft under rule 3 the name of its tindal as entered in the licence and other particulars relating to him shall be entered in a book which shall be kept by the Deputy Conservator of the Port in Form B.

(2)

[***]

(3)

No person shall be employed or registered as a tindal of a licensed harbour craft if he

(a)

is not a certificated officer qualified to be the master or engineer of such harbour craft in accordance with rule 23;

(b)

is in the opinion of the Deputy Conservator of the Port unaccustomed to the use of such harbour craft or otherwise inefficient.

11.

Annual and Special inspection of licensed harbour craft and crew.

-On or before the expiry of the licence the owner of every licensed harbour craft shall produce it together with its licence for inspection by the Deputy Conservator of the Port at such place as he may appoint for the purpose. In addition to such inspections, special or partial inspection may be held by the Deputy Conservator of the Port or by any person duly authorised by him, at such times as the Deputy Conservator of the Port may consider necessary. At all

inspections under this rule, each harbour craft shall have its full complement of crew and equipment.

12.

Repairs of licensed harbour craft ordered for inspection.

(1)

The owner of every licensed harbour craft shall execute such repairs thereto as the inspecting officer may direct in order to render it efficient, and no owner or other person shall use any such harbour craft or cause or permit it to be used until such repairs have been duly executed thereto and the Deputy Conservator of the Port has granted permission for its use. For the purpose of such repairs, the owner shall cause the harbour craft to be hauled up only to such place or places on the foreshore as the Deputy Conservator of the Port may, from time to time, direct.

(2)

All major repairs to the boiler, machinery or hull of a licensed harbour craft shall be carried out under the supervision of an Engineer and Ship Surveyor appointed by the Conservator of the Port. The master, owner or owners of such craft shall, before the commencement of the repairs, pay the Deputy Conservator of the Port a sum sufficient to cover the fees and other expenses of such Engineer and Ship Surveyor. For the purpose of this sub-rule the decision of the Deputy Conservator of the Port as to whether a particular work should be regarded as a major repair or not shall be final.

(3)

The fees referred to in sub-rule (2) shall be calculated on the following scale, namely

(i)

For every vessel the gross tonnage of which does not exceed 10

Tons

Rs.

75.00

(ii)

For every vessel the gross tonnage of which exceeds 10 Tons but does not exceed 25 Tons.

Rs.

100.00

(iii)

For every vessel the gross tonnage of which exceeds 25 Tons but does not exceed 50 Tons.

Rs.

125.00

(iv)

For every vessel the gross tonnage of which exceeds 50 Tons but does not exceed 75 Tons.

Rs.

150.00

(v)

For every vessel the gross tonnage of which exceeds 75 Tons but does not exceed 100 Tons.

Rs.

175.00

(vi)

For every vessel the gross tonnage of which exceeds 100 Tons but does not exceed 300 Tons.

Rs.

200.00

(vii)

For every vessel the gross tonnage of which exceeds 300 Tons but does not exceed 600 Tons.

Rs.

250.00

(viii)

For every vessel the gross tonnage of which exceeds 600 Tons but does not exceed 900 Tons.

Rs.

300.00

(ix)

For every vessel the gross tonnage of which exceeds 900 Tons but does not exceed 1,200 Tons.

Rs.

350.00

(x)

For every vessel the gross tonnage of which exceeds Rs. 350.00 plus 1,200 Tons.

Rs.

50.00 for every 300 Tons or part thereof in excess

of 1,200 Tons.

(xi)

For interim survey.

Rs.

20.00 per visit.

Note. - The above fees shall be in addition to the travelling expenses and overtime fees incurred in connection with these surveys.

(4)

The expenses referred to in sub-rule (2) shall be determined in accordance with the instruction of the Central Government in this behalf.

13.

Control of working of licensed harbour craft.

(1)

The owner of every licensed harbour craft shall provide it with such full complement of crew and with such equipment as may be determined by the Deputy Conservator of the Port and entered in the licence. The tidal of the harbour craft shall not have on board more or less than the number of the crew prescribed in the licence for fine or rough weather according as the harbour craft plies in fine or rough weather and shall not carry passengers or goods in excess of the number or quantity entered in the licence for the harbour craft.

(2)

Every licensed harbour craft plying within the port shall carry such number of life buoys as may be considered reasonable by the Deputy Conservator of the Port and of a type approved by him. Every such harbour craft shall carry in addition such buoyant apparatus as may be considered necessary by the Deputy Conservator of the Port.

All buoys and buoyant apparatus carried in pursuance of this rule shall be stowed to the satisfaction of the Deputy Conservator of the Port and so as to be readily accessible to the persons on board.

(3)

The Deputy Conservator of the Port shall exercise his discretion in fixing the number of crew required in a licensed harbour craft plying within the port and carrying passengers.

(4)

Where the owner of a licensed harbour craft does not desire to carry the full complement of passengers, or is not prepared, or considers it impracticable to carry the prescribed life saving appliances, the Deputy Conservator of the Port may endorse the licence to the effect and the number of passengers is limited accordingly.

14.

Obstructing Port Traffic.

(1)

No tindal or any member of the crew serving in any licensed harbour craft shall, without reasonable excuse, obstruct or hinder the loading, discharging or service of such harbour craft, or of any other licensed harbour craft, or obstruct or hinder any vessel working in the port.

(2)

No tindal shall permit any licensed harbour craft in his charge to obstruct the free navigation of the port or the approaches to wharves or jetties.

15.

Observance of the rule of the road at sea.

- All licensed harbour craft, when under way, shall observe the rule of the road at sea.

16.

Refusal to ply without lawful excuse.

- If the owner or the tindal in charge of a licensed harbour craft plying regularly for hire refuses to allow such harbour craft to ply for hire when required to do so, without reasonable excuse, of which the Deputy Conservator of the Port shall, subject to the appeal provided in rule 27, be the sole judge, the licence of such harbour craft shall be liable to be revoked.

17.

Working of the licensed harbour craft at night and in bad weather.

(a)

No licensed harbour craft shall ply in the outer roads

(i)

between the hours of 6 P.M. and 6 A.M., without the previous permission of the Deputy Conservator of the Port;

(ii)

when flag "S" by day or one red light by night indicating bad weather or high sea is displayed from the Port Flagstaff.

(b)

When either of the signals referred to in clause (ii) above is hoisted at the Port Flagstaff, all harbour craft plying in the outer road shall return to the inner harbour at once and shall not proceed again to the outer roads without the special permission of the Deputy Conservator of the Port until the signal is hauled down.

18.

Permissible load of licensed harbour craft in fine and in rough weather.

(1)

No person shall load a licensed harbour craft with passengers or with animals or other cargo in contravention of the terms of its license.

(2)

No tindal of any licensed harbour craft shall permit any animal to be loaded in it, unless the harbour craft has been provided with sand ballast or straw sufficient to form a flat floor and unless such other requirements, as may be imposed by the Deputy Conservator of the Port in respect of the harbour craft, have been complied with.

(3)

Where animals are carried in a licensed harbour craft, no other cargo or passengers shall be carried therein.

(4)

Passengers and cargo other than animals may be carried at the same time only in a licensed harbour craft propelled by mechanical or electrical power.

19.

Power of tindal to prevent overloading.

- Whenever the number of passengers or the quantity of cargo in a licensed harbour craft exceeds the number or quantity entered in the licence, the tindal shall, before starting from the vessel or from the shore, require any passenger to leave the harbour craft or any consignor, consignee, or shipping or landing agent concerned to remove from the harbour craft the whole or any part of the cargo.

20.

Attention to certain signals required of tindals.

- The owner of every licensed harbour craft shall instruct the tindal of such harbour craft to pay immediate attention to

the harbour craft must fly a square blue flag with four parallel red bars running crosswise-which will be displayed on the Port Flagstaff when the Deputy Conservator of the Port desires to carry out an inspection under Rule 11.

21.
Licensed harbour craft not to interfere with moorings or approaching vessels before they anchor.

- No person in charge of or navigating any licensed harbour craft shall attempt to make such harbour craft fast to any mooring or mark buoy, or take it alongside of a vessel approaching an anchorage before such vessel has come to anchor or been moored to a buoy.

22.
Fishing boats not to be allowed near a cargo boat or alongside a vessel.

(1)
No person in charge of or navigating a licensed cargo boat shall allow a fishing boat to be within ten yards of her when such cargo boat is plying between a vessel and the shore.

(2)
No person in charge of or navigating a fishing boat shall allow it to go alongside a vessel while discharge or shipping of cargo is proceeding.

(3)
If any licensed harbour craft is found by the Deputy Conservator of the Port to have contravened the provisions of sub-rule (1) or (2), the Deputy Conservator of the Port may.

(a)
cancel the licence issued in respect of the harbour craft;

(b)
direct that the tindal at fault shall not be employed in any capacity in any licensed harbour craft and that his name shall be removed from the Register of Tindals; and if any owner employs any such tindal contrary to the Deputy Conservator of the Port's directions under Cl. (b) the Deputy Conservator of the Port may cancel all or any of the licenses in Form A held by the owner.

22A.
Penalty for approaching vessels in the Harbour without lawful business.

- No person in charge of, or navigating an unlicensed harbour craft shall approach within 50 metres of the vessels berthed in the Harbour and no person in charge of, or navigating a licensed harbour craft shall approach a vessel berthed in the Harbour if he has no lawful business on board the vessel. Contravention of these provisions by any person shall be punishable with a fine not exceeding rupees one hundred.

23.
Landing and shipping of passengers and goods to be within the Port.

- All passengers and goods shall be landed or shipped in such places within the limits of the port as the Deputy Conservator of the Port may appoint and no person shall ship or land passengers or goods outside such place unless the sanction of the Port and Customs Officers at the port has been previously obtained.

24.
Rates of harbour craft hire.

- No owner, tindal or any member or the crew of a licensed harbour craft licensed to carry passengers for hire, and no person deputed by the owner of such harbour craft, shall demand from any passenger a rate of hire exceeding that sanctioned by the Central Government and no owner, tindal or member of the crew of such harbour craft shall demand or accept any gratuity or present from any passenger during the course of its trip between any vessel and the shore or from place to place whether within or without the port.

25.
Prohibition of employment of tindals and crew contravening the rules.

- If, in the opinion of the Deputy Conservator of the Port any tindal or any member of the crew of a licensed harbour craft has contravened any of these rules, the owner of the harbour craft shall, on being required so to do by the Deputy Conservator of the Port, dismiss or suspend for such period as the Deputy Conservator of the Port may specify in that behalf, such tindal or member of the crew from his employment. Any action taken by the Deputy Conservator under this Rule shall be without prejudice to any other action which he may take in respect of the contravention of the rule.

26.

Revocation of licenses.

- If in the opinion of the Deputy Conservator of the Port, the owner of any licensed harbour craft has contravened any of these rules, the Deputy Conservator of the Port may, without prejudice to any other action that may be taken against such owner in respect of the contravention, cancel all or any of the licensed in Form A held by the owner.

27.

Appeal from Deputy Conservator of the Port's decision.

- An appeal shall lie from any of the decisions of the Deputy Conservator of the Port under these rules, to the Conservator of the Port. Such appeal shall be preferred in writing within seven days after the decision of the Deputy Conservator of the Port has been communicated in writing to the port or parties concerned, and the decision of the Conservator thereon shall be final.

28.

Fees.

- The following fees shall be payable by the owners of harbour craft licensed or liable to be licensed

(i)

For each survey and measurement

-Rupees

two

(ii)

For issue or re-issue of a licence

-Rupees

two

(iii)

For each annual inspection

-Rupees

two

(iv)

For endorsing change of tinal

-Fifty

paise

(v)

For registration of boat

-Rupees

two

Provided that-

(i)

in respect of canoes only half the above fees shall be payable;

(ii)

where the harbour craft is found unseaworthy at the time of survey or at the time of annual inspection only half the fee shall be payable;

(iii)

where the harbour craft is a motor boat or steam boat in respect of which a certificate of survey under the Indian Merchant Shipping Act, 1923, or the Inland Steam Vessels Act, 1917, is held by the owner, no fee shall be payable for survey and measurement, but if no such certificate of survey is held, a fee of forty rupees shall be payable;

(iv)

the fee for the issue of a duplicate licence shall be half of the fee for the original licence, provided the latter is proved to the satisfaction of the Deputy Conservator of the Port to have been lost or mislaid, or has been rendered illegible;

Note. - A surcharge of 10 per cent. on the rates specified above shall also be payable.

29.

Special provisions applicable to steam boats and motor boats licensed under these rules.

(1)

Every steam boat licensed under these rules shall, when in use, whether plying for hire or not, have on board the

following certificated officers :

(i)

if she has engines of not less than 100 N.H.P.

(a)

as her master, a person possessing a first class master's certificate granted under the Inland Steam Vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894. or a master's certificate granted either under the Indian Merchant Shipping Act, 1923 or under such regulations as the Central Government may, from time to time prescribe, or the Merchant Shipping Act, 1894, and

(b)

as her engineer a person possessing an engineer's certificate granted under any of the aforesaid Acts or regulations.

(ii)

if she has engines of less than 100 N.H.P., but not less than 40 N.H.P.-

(a)

as her master, a person possessing a second-class master's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (a) of Cl. (i), and

(b)

as her engineer, a person possessing a first class engine-driver's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894 or an engine driver's certificate granted under the Indian Merchant Shipping Act, 1923, or under such regulations as the Central Government may, from time to time, prescribe or any such certificate as is referred to in sub-clause (b) of clause (i) :

Provided that a boat shall be deemed to have complied with this clause if she has as her master and engineer a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b); and

(iii)

if she has engines of less than 40 N.H.P.

(a)

as her master, a person possessing a serang's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894 or any such certificate as is referred to in sub-clause (a) of clause (ii); and

(b)

as her engineer, a person possessing a second class engine-driver's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894 or any such certificate as is referred to in sub-clause (b) of clause (ii):

Provided that a boat shall be deemed to have complied with this clause, if she has as her master and engineer a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b).

(2)

Every motor boat licensed under these rules shall, when in use whether plying for hire or not, have on board the following certificated officers.

(i)

if she has engines of not less than 565 B.H.P.

(a)

as her engineer, a person possessing a motor engineer's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894 or a certificate as a first class or second-class engineer of a sea going motor ship granted either under the Indian Merchant Shipping Act, 1923 or under such regulations as the Central Government may, from time to time, prescribe, or the Merchant Shipping Act, 1894;

(b)

in case the engines are used for propulsion, as her master, a person possessing a first-class master's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894 or a master's certificate granted either under the Indian Merchant Shipping Act, 1923, or under such regulations as the Central Government may, from time to time, prescribe, or the Merchant Shipping Act, 1894;

(ii)

if she has engines of less than 565 B.H.P. but not less than 226 B.H.P.-

(a)

as her engineer, a person possessing a first class motor engine driver's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or a certificate of an engine-driver of a sea going motor ship granted under the Indian Merchant shipping Act, 1923 or under such regulations as the Central Government may, from time to time, prescribe or any such certificate as is referred to in sub-clause (a) of clause (i); and

(b)

in case the engines, are used for propulsion, as her master a person possessing a second class master's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894 or any such certificate as is referred to in sub-clause (b) of clause (i); and

(iii)

if she has engines of less than 226 B.H.P.

(a)

as her engineer, a person possessing a second-class motor engine-driver's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894 or any such certificate as is referred to in sub-clause (a) of clause (ii); and

(b)

in case the engines are used for propulsion, as her master, a person possessing a serang's certificate granted under the Inland Steam-Vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (b) of Cl. (ii):

Provided that a motor boat having engines of not more than 40 B.H.P. may have as her engineer, a person holding a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf:

Provided also that a motor boat having engines of not more than 20 B.H.P., the length of which measured from the fore part of the stem to the after part of the stern post does not exceed 30 feet may have as her master and engineer a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b)

Provided further that a motor boat having engines of not more than 20 B.H.P., the length of which measured as aforesaid does not exceed 30 feet, which is used exclusively for personal recreation by the owner or his family or friends need not carry a certificated master or engineer but may be navigated by the owner or any other person possessing a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf.

(3)

Any person who has served as master, serang, engineer, or engine-driver of a steam boat or motor boat plying in the port for a period of 3 years on the 31st December 1956, and is not in possession of the certificate of competency required under sub-rule (1) or sub-rule (2), as the case may be, may be granted by an officer duly authorised by the Central Government in this behalf, without examination and on payment of the fees prescribed by the Central Government, a certificate to the effect that he is, by reason of his having so served, competent to act as master, serang, engineer, or engine-driver on board such steam boat or motor boat while plying in the port.

(4)

The Central Government may in special circumstances

(a)

exempt any class of steam boats or motor boats from the requirements of sub-rule (1) or sub-rule (2) as the case may be, and

(b)

lay down the qualifications required of the officers employed on such boats;

30.

(1)

Every motor boat licensed under these rules shall be provided with a sand box and an approved patent fire extinguisher or suitable capacity for extinguishing fire, and the owner shall keep it free from oil refuse.

(2)

Noisy engines of all motor boats licensed under these rules, while plying within the port, shall be fitted with efficient

silencers.

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